

HOA Board and Design Review Board Policies

As of 8/6/16

The following information is intended to provide more specifics and clarity on how the board is operating, with respect to various community issues.

If you have any questions, please contact us at home@riverwoodtrails.com.

Signs. No signs of any character shall be erected, posted or displayed upon Property, except: (i) marketing signs installed by the Developer, while marketing the Lot and residences for sale; (ii) street and identification signs installed by the Association, Governing Municipality or the Developer; and (iii) one temporary real estate sign not to exceed six square feet in area advertising that such Lot is for sale. Any other sign, which is in violation of this Use Restriction shall be subject to board action, including but not limited to a fine to Lot Owner.

Trash. Other than for reasonably necessary activities of the Developer, during the original development of the Property, no burning or storage of trash, of any kind shall be permitted on the property, except that this Article IV, Paragraph K shall not be intended to prohibit the temporary use of a small dumpster required for renovation by Lot Owner, which will not be on Lot Owner's property for longer than 14 days. All trash is to be kept in a covered garbage can and is to be stored in Owner's garage or back yard, screened from public view, unless within twenty-four (24) hours pre or post the scheduled trash pick-up time.

Street Tree. Developer may designate one (1) or more trees, as deemed necessary by Developer, along street in front of each Lot. If Developer determines to designate street tree(s), then Lot Owners agree to such uniform street trees. Each Lot Owner shall care for, and, if necessary, replace such tree or trees, at Lot Owner's expense, with only a Maple Tree of the same type and variety as was originally planted. Trees planted will be estimated to grow to a maximum height of 15 feet, will not have roots that will damage adjacent sidewalks and will not have any seedlings or droppings, other than the natural process of losing their leaves each fall.

Mailbox. Developer may designate a curbside mailbox for each Lot, with a design that gives uniformity to the subdivision. If the mailbox is damaged, destroyed or deteriorates, then each Lot Owner, at such Lot Owner's expense, shall repair or replace such mailbox with another mailbox that is consistent with the original mailbox and post. Specifically, the mailbox shall be white, made of plastic or metal, free from rust, and it shall be securely fastened to a weather treated, wooden post, which shall be painted with a paint having the same shade as Sherwin Williams Super Paint known as "Loggia," with color code SW7506.

Fencing: The Design Review Board shall have the authority to establish standards according to which fencing and walls may be permitted in the Subdivision. Said authority shall include the power to prohibit fencing or walls, or both, entirely, to prohibit fencing or walls of certain types, and to prohibit fencing or walls in certain areas. All fencing and walls shall conform to the standards set forth by the Design Review Board, and shall be approved by the Board, in writing, prior to the installation thereof. By way of example, and not limitation, compliance with the following standards shall be considered by the Board in reviewing fence applications:

1. Only treated wood, split rail fences are permitted. Dark painted wire mesh or plastic mesh attached inside a split rail fence is permitted. Any Owners who have fences which are different from split rail, as of July 1, 2014, will be grandfathered in, until such time that the fence needs repaired or replaced. At that time, the current Owner will be required to comply with this Use Restriction.:
2. No fence or wall shall be constructed in excess of forty-eight inches (48") above finished grade, provided however that is a governmental agency exercising jurisdiction over the property on which the fence or wall is to be constructed requires a minimum height in excess of 48" for safety reasons (i.e. swimming pool enclosure), such fence or wall may exceed 48" above finish grade , but only to the extent necessary to meet the governmentally required minimum;
3. Fences or walls shall not be located closer to the street than a line parallel to the street and extending from the midpoint between the front and corners of the home, and in no event shall be fences located closer to any street than the building line shown on the recorded plat, except for decorative railings, walls or fences not exceeding three feet (3') in height which are located on or adjacent to entrance platforms or steps;

Swimming Pools. No above ground swimming pool, extending twelve (12) inches or more above the finished grade of the Lot shall be permitted upon any Lot, except that this Article IV, Paragraph S shall not be intended to prohibit the installation of a hot tub, sauna or temporary children's pools that are seasonal, in nature. These pools shall be removed by Owner no later than Labor Day, to be compliant with this accepted Use Restriction.

Screen Doors/Storm Doors. All screen or storm doors shall coordinate and be consistent with the architectural design and color scheme of the house.

Shingle Color. Roof shingles shall be maintained, repaired or replaced, at Lot Owner's expense, consistent with manufacturer's required standards. If specific roof shingles are unable to be maintained or repaired, the entire roof shall be replaced by Lot Owner, at Lot Owner's expense with shingles consistent in quality and color to IKO Industries, Inc. Mineral Surface Fiberglass Base Architectural/Dimensional Asphalt Shingles, with the color of "Cambridge - Weatherwood." Any Owners who have different shingles, which do not meet this Use Restriction, as of July 1, 2014, will be grandfathered in, until such time that the property's roof needs to be repaired or replaced. At that time, the current Owner will be required to comply with this Use Restriction.

Exterior Paint and Siding. Exterior paint and siding shall be maintained, repaired or replaced, at Lot Owner's expense, consistent with manufacturer's required standards. If specific sections of exterior, painted material and/or siding are unable to be maintained or repaired, then said exterior, painted surfaces and/or siding shall be replaced by Lot Owner, at Lot Owner's expense. All trim paint colors

shall be limited to the following: white, cream, or tan (same shade as Sherwin Williams SW7506 "Loggia").

All siding shall be similar, in style and quality, to Norandex Summit Manor Dutch Lap Vinyl, with a size between 4 and 5 inches, using the same or comparable colors to that are offered by the Norandex line, specifically white, silver/light grey, cream, tan, almond/light cream, granite/dark grey, or cobblestone. Any Owners who have different color siding or paint, which do not meet this Use Restriction, as of July 1, 2014, will be grandfathered in, until such time that any painted surfaces need repainted and/or the siding needs to be repaired or replaced. At that time, the current Owner will be required to comply with this Use Restriction.

Doors and Shutters. All doors and shutters shall be maintained, repaired or replaced at Lot Owner's expense, using only the following colors: white, black, cream, red/burgundy, Independence Blue, or Dark Green (i.e., Sherwin Williams SW2259, "Dense Forrest").

FEES - Late Charge; Acceleration. If all or any part of any Assessment remains unpaid, as of the first day of the month following the due date established on the invoice, then the Board shall impose a Late Charge, at a rate of \$10 per month, until the assessment is paid in full. Any subsequent late charges will be levied on the first day of each month beyond the due date, until the Assessment is paid in full or the Late Charges reach the maximum of \$120, for each unpaid Assessment. The Board shall also charge a reasonable Administration collection charge, together with the initial Late Charge, if utilizing the services of a professional management or collection agency.

Liability for Unpaid Assessments. Each Assessment or installment of an Assessment, together with interest thereon any costs of collection, including reasonable attorney's fees shall become the personal obligation of the Owner(s) beginning on the date the Assessment or installment thereof becomes due and payable. The Board shall authorize the Association to institute an action at law on behalf of the Association against the Owner(s) personally obligated to pay any delinquent. An Owner's personal obligation for a Lot's delinquent Assessments shall also be the personal obligation of his/her successors in title who acquire an interest after any Assessment becomes due and payable and both such Owner and his/her successor in title shall be jointly and severally liable therefore. Except as otherwise provided herein, the transfer of an interest in a Lot shall neither impair the Association's lien against that Lot for any delinquent Assessment nor prohibit the Association from foreclosing that lien.

Any funds received from an Owner having unpaid Assessment(s) shall first be applied to the oldest unpaid Assessment(s). Once all Assessment(s) have been paid in full, funds received will then be applied to the oldest late charges remaining on Owner's account, until said Owner's account is brought current. Notwithstanding the above payment application procedure, upon special request of Owner, the Board may authorize the funds received to be applied to a newer Assessment balance due, if it will help avoid further late charges against said Owner's Lot, as long as Owner has been issuing regular payments to bring their account current.

Liens. All unpaid Assessments, together with any interest and charges thereon or costs of collection, shall constitute a continuing charge in favor of the Association and a lien on the Lot against which the Assessment was levied. If any Assessment and/or Late Charge remains unpaid for 10 days after either or both are due, then the Board may authorize any officer or appointed agent of the Association to file a certificate of lien for all or any part of the unpaid balance of that Assessment or Late Charge,

together with interest and costs, with the appropriate governmental office containing a description of the Lot, which the lien encumbers, the name(s) of the Owner(s) of that Lot, the amount of the unpaid portion of the Assessment or Late Charges, and such other information, as the laws of the State may require. If the total past due balance, including Late Charges, exceeds \$400.00 for any Lot, then the Board shall authorize any officer or appointed agent of the Association to file a certificate of lien for all or any part of the unpaid balance of that Assessment or Late Charge, together with interest and costs, with the appropriate governmental office containing a description of the Lot, which the lien encumbers, the name(s) of the Owner(s) of that Lot, the amount of the unpaid portion of the Assessment or Late Charges, and such other information, as the laws of the State may require. The certificate shall be signed by any officer, authorized agent or Manager of the Association. Upon the filing of the certificate, the subject Lot shall be encumbered by a continuing lien, in favor of the Association. The Assessment lien shall remain valid for a period of five years, from the date such certificate is duly filed, unless the lien is released earlier or satisfied in the same manner provided by the law of the State, for the release and satisfaction of mortgages on real property, or unless the lien is discharged by the final judgment or order of any court having jurisdiction. Notwithstanding the foregoing, the lien for Assessments provided for in this Section shall be subordinate to the lien of any bona fide first mortgage on the Lot.

Remedies for Default. If an Owner is in default of payment of an Assessment, the Board shall authorize collection through any lawful means, including foreclosure of the lien. Interest and all costs of such collection, including but not limited to court costs, lien fees and attorney fees shall be included in the amount due from the Owner and may be collected. The Board may authorize the Association to bid its interest at any foreclosure sale and to acquire, hold, lease, mortgage and convey any Lot.